

Cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Proof of Service was filed on July 20, 2026 indicating that “MC-030, NC-100, and NC-120” forms were personally served on the father on July 17, 2026. This is more than thirty days prior to today’s hearing, however, because an Amended Order to Show Cause never issued, it is unclear if any of the documents served provided notice of today’s hearing or only provided notice of the original hearing date of May 26, 2026. **An appearance by Petitioner is necessary on today’s calendar. The Court will inquire regarding the contents of the Order to Show Cause (NC-120) served on the father on July 17, 2026.**

IN RE: EASTER

CASE NUMBER: 26CV-0210772

Tentative Ruling on Petition for Change of Name: Petitioner Jessica Penny Easter seeks to change her name to Penny Georgia-Darlene Hetzel No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: EMERY

CASE NUMBER: 26CV-0210809

Tentative Ruling on Petition for Change of Name: Petitioner Alex Emery seeks to change his name to Alexandre David Podtetenieff. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

Tentative Ruling on Motion for Summary Judgment or Adjudication: Defendant FCA US, LLC moves for summary judgment, or in the alternative, summary adjudication. The motion was originally noticed for September 29, 2025, however, the hearing continued by stipulation of the parties to January 26, 2026. Plaintiffs Taryn and Ryan Ham moved for a continuance of the January 26, 2026 hearing pursuant to CCP § 437c(h) alleging that they had been unable to depose Defendant’s PMQ. The Court granted the continuance. At a February 9, 2026 status conference, the parties informed the Court that the PMQ deposition was scheduled and June 15, 2026 was selected for the hearing date on the motion. Plaintiffs did not file an Amended Opposition. The Court’s tentative ruling on June 15, 2026 required an appearance because it was unclear if the motion was going forward. Plaintiffs did not appear. When the matter was back on calendar on July 26, 2026, both parties informed the Court that the motion was fully briefed and could move forward. Based on the Court’s calendar, the earliest date possible was August 17, 2026 which is why the Court found good cause to hear the motion less than thirty days prior to trial. A visiting judge who recused on the matter was present on August 17, 2026 and the hearing again moved to the earliest available date of August 24, 2026. The Court continues to find good cause to hear the motion within thirty days of trial. Because all issues regarding CCP § 437c(h) have already been addressed, they are not addressed in this tentative ruling.

Evidentiary Objections. The Court rules as follows on the evidentiary objections made by Defendant:

Declaration of Rabiya Tirmizi.

1. Sustained as improper legal opinion
2. Overruled
- 3-6. A ruling is only required on objections to evidence that are material to the disposition of the motion. This pertains to the request for a continuance under CCP § 437c(h), which is not an issue in this ruling.

Declaration of Taryn Ham and Ryan Ham

1. Overruled

2. Overruled
3. Overruled
4. Overruled
5. Overruled
6. Overruled
7. Sustained as improper legal opinion for the first sentence only. Overruled a to the balance
8. Overruled
9. No objections listed to rule on
10. Overruled
11. Overruled

Request for Judicial Notice. Plaintiffs request the Court take judicial notice of seven documents found at the website NHTSA.gov pursuant to Evid. Code §§ 452(c) and (h). A copy of each was provided and no objections were lodged. The requests are granted pursuant to Evid. Code §§ 452(c) and (h) and 453.

Merits. Summary judgment may be granted where it is shown that the action has no merit or that there is no defense to the action. CCP § 437c(a). The Court must determine from the evidence presented that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. CCP § 437c(o). Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(p)(2). The scope of the defendant's initial burden is defined by the pleadings. See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal. 4th 826, 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal. App. 4th 297, 304.

Here, Defendant seeks summary judgment as well as summary adjudication of six issues.

First Cause of Action – Civ. Code § 1793.2(d). Defendant states in the Notice of Motion, “No evidence of recurring defect, all repairs were minor, isolated and resolved. A single repair attempt is legally insufficient to establish a breach under *Silvio v. Ford* and its progeny.”

Civ. Code § 1793.2(d) requires that if a manufacturer does not service or repair the goods to conform to applicable express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer. The elements are listed in CACI 3200.

The Complaint in this matter was filed on November 26, 2024 and has not been amended. Plaintiffs specify that the defects and nonconformities include, but are not limited to, “electrical battery defects, engine defects, transmission defects, electrical defects.” *Complaint* ¶ 15. The parties agree that on July 15, 2021, Plaintiffs purchased a 2021 Jeep Wrangler manufactured by Defendant and that Defendant provided a warranty. Regarding the condition of the vehicle, it was presented on May 10, 2022. The parties dispute what occurred on May 10,

2022, therefore, the Court relies on the actual evidence presented. Per the Invoice No. 45944, the oil was changed, tires were rotated, and warranty work was performed under six RRTs. Item H notes “Need to Order Part, Will Call When Part Arrives.” Per Plaintiffs’ declaration, the missing part was a fuel cap tether. *Plaintiffs’ Decl.* ¶ 12. The fuel cap tether replacement occurred on May 13, 2022. The vehicle was presented again on September 13, 2022. Per Invoice 47851, there was red rust on rear bumper bolts and parts needed to be ordered under RRT22-115. Regarding the check engine light, the vehicle was scanned for codes and “found p4ed evap leak, performed smoke test and found the tether that holds the gas cap is pinched between cap and filler neck.” The vehicle was repaired per the correction noted. Invoice 48622 for a visit on November 3, 2022 reflects standard maintenance and warranty work under RRT22-115. This was the RRT related to the rear bumper bolts that had been raised at the September 13, 2022 visit. The parties agree that warranty work was performed on December 19, 2022. The vehicle was presented on July 18, 2023 for work under RSU 23-037. The parties disagree regarding the March 25, 2024 visit. Per Invoice 55540, there were wiring issues in the front bumper, condensation in the rear spare tire area which the technician noted was caused by a plastic bracket being cracked, and Plaintiffs stated that while idle or at low speeds and that the rpms seemed high. The vehicle was test driven and the technician noted, “no problems at this time.” The parties agree that also on March 25, 2024, two safety recalls were performed and that the vehicle was out of service for five days for the visit. Routine maintenance was performed on November 13, 2024. The Court notes that the Complaint in this matter was filed on November 26, 2024. Based on the several visits and warranty work required, coupled with the time the vehicle was out of service, a reasonable jury could find that the vehicle did not perform as stated or that it did not match the quality of a 2021 Jeep Wrangler. There were two occasions in which the repair was not performed the same date, and in the instance of the bolts, the repair was a month and a half later (September 13, 2022 to November 3, 2022). Defendant did not replace the vehicle. The Court notes that an actual request for repurchase is not necessarily required. Defendant has an affirmative obligation. As to the First Cause of Action, Court finds sufficient triable issues of material fact to warrant a denial of summary adjudication.

Second Cause of Action – Civ. Code § 1793.2(b). Defendant states in the Notice of Motion, “Each repair was completed well within the statutory window under Civil Code § 1793.2(b); no repair took more than a single day.”

Civil Code § 1793.2(b) provides that repairs must be commenced within a “reasonable time,” and the goods shall be serviced or repaired to conform to the applicable warranties within 30 days. As noted above, there was a repair that took more than thirty days. As to the Second Cause of Action, Court finds sufficient triable issues of material fact to warrant a denial of summary adjudication.

Third Cause of Action – Civ. Code § 1793.2(a)(3). Defendant states in the Notice of Motion, “No evidence FCA failed to provide sufficient parts or service literature. All repairs were timely and performed without delay.”

Civil Code § 1793.2(a)(3) states that every manufacturer who has made an express warranty shall “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” As noted above, there were two occasions where Plaintiffs had to return due to parts not being available, one of those times being in excess of thirty days. As to the Third Cause of Action, Court finds sufficient triable issues of material fact to warrant a denial of summary adjudication.

Fourth Cause of Action – Civ. Code §§ 1791.1, 1794, and 1795.5. Defendant states in the Notice of Motion, “The implied warranty expired by operation of Civil Code § 1791.1(c), and the vehicle remained fit for ordinary use.” The implied warranty of merchantability or fitness lasts for up to one year from the date of purchase. Civ. Code § 1791.1(d). To be merchantable, consumer goods must meet each of the following:

- (1) Pass without objection in the trade under the contract description.
- (2) Are fit for the ordinary purposes for which such goods are used.
- (3) Are adequately contained, packaged, and labeled.
- (4) Conform to the promises or affirmations of fact made on the container or label.

Civ. Code § 1791.1(a).

The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal. App. 4th 1297, 1304. Per the Consumer Alert issued by NHTSA on November 4, 2025, a recall affecting 228,221 Jeep Wranglers issued regarding a battery defect issued “due to risk of fire while parked or driven.” *Plaintiffs’ RJN, Ex. 8*. The Consumer Alert states, “Owners should park their vehicle outside and away from structures and other vehicles or other vehicles until their vehicle has been remedied. In addition, owners should not charge unrepaired vehicle batteries because the risk of fire is higher in a charged battery than when the battery is depleted.” *Id.* A reasonable jury could find that a defect of this magnitude was latent and existent in the vehicle at the time of purchase, especially when coupled with the battery issues noted in the service records provided. As to the Fourth Cause of Action, Court finds sufficient triable issues of material fact to warrant a denial of summary adjudication.

Sixth Cause of Action – Fraudulent Inducement – Concealment. Defendant states in the Notice of Motion, “No duty to disclose; no actionable concealment; and the claim is barred by the Economic Loss Rule. Plaintiffs also disclaimed knowledge of any misrepresentation or omission in verified discovery.”

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]” *Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal. App. 4th 124, 162.

In Plaintiffs’ UMF 26, Plaintiffs refer to the Complaint as if the Complaint is evidence. It is not. However, Plaintiffs do point to the first TSB provided in evidence, which is dated August 26, 2021. *Plaintiffs’ RJN, Ex. 1*. This is just over a month from the time of purchase. The TSB is related to the battery. A reasonable jury could infer that Defendant was aware of at least some issues with the battery prior to Plaintiffs’ purchase. No battery issues were disclosed to Plaintiffs prior to purchase and Plaintiffs have provided a declaration that they would not have purchased the vehicle had they known it may have battery issues. Additionally, Plaintiffs have presented evidence that they reviewed FCA-produced materials on FCA’s website and discussed the vehicle with the representative at the authorized dealer and that none of the communications disclosed a potential battery defect.

Regarding a duty to disclose, in *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal. App. 5th 828, the First District Court of Appeal found plaintiffs sufficiently alleged a transactional relationship with Nissan by alleging they purchased a vehicle from a Nissan dealership, with an express warranty backed by Nissan, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. Here, Plaintiffs purchased the Subject Vehicle from Defendant SJ Denham and entered into a warranty contract with Defendant FCA US. The transactional relationship here is the same as the transactional relationship the Court found sufficient to withstand demurrer in *Dhital*.

Regarding the Economic Loss Rule, in *Rattagan*, the Court examined whether conduct occurring in the course of a contractual relationship can give rise to a tort claim. Plaintiffs here make the distinction that their claim is for fraudulent inducement, which necessarily occurs prior to contract formation, not in the course of the relationship. In *Rattagan*, the Court addressed this distinction:

As we observed in *Lazar*, “fraudulent inducement of contract — as the very phrase suggests — is not a context where the ‘traditional separation of tort and contract law’ [citations] obtains. To the contrary, this area of the law traditionally has involved both contract and tort principles and procedures. For example, it has long been the rule that where a contract is secured by fraudulent

representations, the injured party may elect to affirm the contract and sue for the fraud.” (*Lazar, supra*, 12 Cal.4th at p. 645, 49 Cal.Rptr.2d 377, 909 P.2d 981, *citing Campbell v. Birch* (1942) 19 Cal.2d 778, 791, 122 P.2d 902; *see generally* 5 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 726, pp. 825-826.) The same may not necessarily be true of fraudulent concealment claims based on conduct occurring after the contract has been formed.

Id. at 41.

Thus, the *Rattagan* decision itself counsels against its applicability here, where Plaintiffs have alleged fraudulent inducement of contract and presented evidence that the fraudulent concealment occurred prior to contract formation.

While the Court recognizes that the evidence presented does not amount to a particularly strong case for fraudulent concealment, the Court also recognizes that, for purposes of this motion, the evidence must be viewed in the light most favorable to Plaintiffs. With that standard in mind, a triable issue of material fact exists. Therefore, summary adjudication on the Sixth Cause of Action is not warranted.

Civil Penalties and Punitive Damages. Defendant states in the Notice of Motion, “Plaintiffs cannot establish willfulness under Civil Code § 1794(c)-(e), and no basis exists for punitive damages.”

This summary adjudication issue is actually several issues lumped into one. Therefore, if summary adjudication as to any of the parts is not warranted, summary adjudication has to be denied. Civ. Code § 1794(c) allows for the recovery of a civil penalty if the buyer establishes that the failure to comply was willful. Civ. Code § 1794(d) allows for attorney fees when a buyer prevails. Civ. Code § 1794(e) relates to a violation of Civ. Code § 1793.2(d)(2). Finally, punitive damages are recoverable in instances of fraud. See Civ. Code § 3294. A denial of summary adjudication of the Sixth Cause of Actions means that punitive damages are recoverable. Therefore, summary adjudication on this issue is not warranted and the Court need not analyze the balance.

With each of the six summary adjudication issues being **DENIED**, summary judgment is also **DENIED**. Defendant provided a proposed Order that will be modified to reflect the Court’s ruling. The Court confirms the trial date of August 25, 2026.

KENDALL VS. HAT CREEK CONSTRUCTION & MATERIALS, INC.

CASE NUMBER: 25CV-0208306

Tentative Ruling on Motion to Compel Arbitration: Plaintiff Cindy Kendall moves to compel arbitration on her Complaint filed July 29, 2025. Defendant Hat Creek Construction & Materials, Inc. opposes the motion.

As a preliminary matter, Defendant filed a document titled “Defendant Creek & Construction Materials, Inc.’s Objections to Portion of Reply Brief and Declarations of Jonathan Kaldas and Cindy Kendall” on August 18, 2026. There is no explanation regarding why objections to the declarations filed with the moving papers were not made at the time the Opposition was filed and Defendant instead waited until Plaintiff had filed their Reply to object. It is surprising to the Court that Defendant is arguing about whether the agreement produced by Defendant in discovery can be admitted. The objection to the agreement and ¶ 2 of the Declaration of Jonathan Kaldas are overruled. The remaining objections are not to evidence, but to Plaintiff’s argument and need no ruling.

Request for Judicial Notice. In the Declaration of Benjamin L. Kennedy, Defendant requests the Court take judicial notice of the Declaration of Jonathan Kaldas filed June 23, 2026 and the Court’s Ruling dated July 13, 2026. The request is granted pursuant to Evid. Code § 452(d).